

OFFICE OF THE SECRETARY

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September 23, 2020

The Honorable Carol H. Rehm Jr.
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: Michael Jacquet Daniels
CDCR No: G23416
Case No: BA301458
Date of Sentence: May 14, 2008

Dear Honorable Carol H. Rehm Jr.:

The purpose of this letter is to provide the court with the authority to resentence inmate Michael Daniels, G23416 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Daniels has remained disciplinary free since being received to CDCR on July 11, 2008. Inmate Daniels is currently assigned as California Prison Industry Authority, Furniture Hand Sander, and his supervisor notes he is a hard worker and completes all assigned tasks. Inmate Daniels also participates in College (Onsite), and Alcoholics Anonymous, Self-Help Programs. Inmate Daniels has received Letters of Support and 21 Laudatory Chrono's from these Self-Help Group Sponsors acknowledging his commitment and dedication to these Self-Awareness and Improvement Groups.

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Various staff at San Quentin State Prison have been interviewed in regards to inmate Daniels' current programming and behavior. Staff stated inmate Daniels is a programmer who keeps to himself and "stays out of the way."

Having reviewed the enclosed documentation it appears that inmate Daniels' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


(for) RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office